

UPSC PRELIMS 2026: KEY LEGISLATIVE CHANGES & CONSOLIDATION

ABHISHA AI

by Abhishek Pathak

FOCUS: REPLACING COLONIAL LAWS WITH MODERN FRAMEWORKS

1. INCOME-TAX ACT, 2025: FISCAL REFORM



- Replaces 'The Income-tax Act, 1961'.
- Core Objective: Simplify Direct Tax Law
 - Reduce chapters & sections
 - Move to Principle-based Law to reduce litigation



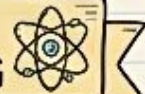
🎯 Prelims Focus Points

- Powers of CBDT (Central Board of Direct Taxes) under new framework.
- Tax Residence Rules: Definition of 'Resident' vs. 'Non-Resident'.
- Streamlined Appellate Mechanism: ITAT process.
- Legislative Backing: For AI-driven 'Faceless Assessment 2.0'.
- Static Link: Article 265 (Tax authority by law); Finance Bills vs. Money Bills.



Nodal Ministry: Ministry of Finance

2. SHANTI ACT, 2025: NUCLEAR SECTOR OPENING



(SHANTI = Sustainable Harnessing and Advancement of Nuclear Energy)

- Replaces State-only monopoly under 'Atomic Energy Act, 1962'.
- Key Shift: Opens nuclear power to Private & Foreign Participation.



🎯 Prelims Focus Points

- Regulatory Oversight: Status & powers of AERB (Atomic Energy Regulatory Board).
- Interaction with CLND (Civil Liability for Nuclear Damage) Act.
- Fuel Management: Uranium procurement, Three-Stage Nuclear Power Program
- Global Alignments: NSG (Nuclear Suppliers Group) guidelines, IAEA safeguards.
- Static Link: Entry 6 (Union List, Atomic Energy); Seventh Schedule distribution.
- Nodal Ministry: Department of Atomic Energy (PMO)



Uranium → Thorium → Advanced

3. JAN VISHWAS (AMENDMENT) ACTS, 2025 & 2026: EASE OF DOING BUSINESS



- Continued Decriminalization drive.
- Mechanism: Converts 'Criminal Offenses' to 'Civil Wrongs' with penalties.



🎯 Prelims Focus Points

- Administrative Adjudication by 'Adjudicating Officers' to reduce court backlogs.
- Major Acts Impacted: (Examples) Environment Protection Act, Pharmacy Act, Copyright Act
- Definition of 'Compounding': How it works in legal context.
- Static Link: Judicial Efficiency vs. Executive Power; Separation of Powers (Article 50).
- Nodal Ministry: Ministry of Commerce and Industry (DPIIT)



UPSC PRELIMS 2026: STRATEGY TIPS

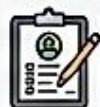
- Focus on Core Objective, Regulatory Bodies, and Administrative Mechanisms of each Act.
- Understand Static-Current Linkages and Constitutional implications.
- Look out for "traps" like swapping features between Acts.
- Verify Nodal Ministries carefully.
- Move beyond rote memorization to analytical understanding.

LEGISLATION & REFORMS (UPSC PRELIMS 2026)

1. WAQF (AMENDMENT) ACT, 2025: KEY REFORMS



- Mandates **DIGITAL REGISTRATION** of all Waqf properties on a **CENTRALIZED PORTAL** (Waqf-Assets Management System of India).
- **REMOVES UNILATERAL DECLARATION** power of Waqf Boards over properties.
- **SHIFTS** certain **POWERS** to **DISTRICT COLLECTOR** for property status determination (e.g., distinguishing from Gov. land).
- **NEW COMPOSITION:** Mandates inclusion of **TWO WOMEN** and **NON-MUSLIM** members on State Waqf Boards.
- **REMOVAL** of 'Waqf by User': Property can't be declared Waqf just by long-term use; **VALID DOCUMENTS** required.



2. NATIONAL SPORTS GOVERNANCE ACT, 2025: KEY REFORMS



- Establishes a **NATIONAL SPORTS TRIBUNAL (NST)** for specialized dispute resolution (doping, selection, ethics).



- **MANDATES** standardized governance for **SPORTS FEDERATIONS**.
- Sets **FIXED TENURES** and **AGE LIMITS** for office bearers (e.g., '70-year rule').
- **GUARANTEES** athlete representation in executive committees (minimum 25%).



KEY CHANGES AT A GLANCE

ACT	PREVIOUS STATE	POST-2025 REFORM
Waqf Act	Waqf-by-User / Board Power	Documentary Proof / DC Role
Sports Governance	Ad-hoc / NSF Discretion	NST Oversight / Athlete Rep.
Rural Employment	Universal / 100 days (MGNREGA)	Targeted / 125 days (VB-GRAM)

3. VB-GRAM ACT, 2025: REPLACING MGNREGA MODEL



- **REPLACES** universal approach of MGNREGA with a **TARGETED** guaranteed wage guarantee.



- **APPLIES** only to **NOTIFIED RURAL AREAS** (backward districts, tribal belts).
- **OFFERS** 125 days of guaranteed **WAGE EMPLOYMENT** per household.
- **STRONGER** focus on **DURABLE ASSET CREATION** and integrating with **LIVELIHOOD** (Ajeevika).
- **Direct Benefit Transfer (DBT)** enhanced.



EXAM TIP: Expect statement-based questions on the *nature* of reforms. Distinguish clearly between targeted vs. universal programs (VB-GRAM) and centralized registration (Waqf). For Sports, understand the role of the *specialized* Tribunal over general courts.

THEME: INDIVIDUAL LIBERTY & PRIVACY

Article 21 & The Expansion of Rights

1. RIGHT TO DIGITAL ACCESS (Amar Jain vs Uol, 2025)



- Held access to digital services as a **fundamental right** under Article 21. Amar Jain
- Termed a **"constitutional imperative"** for an inclusive society.
- Emphasized for persons with disabilities (KYC/face recognition issues).
- Reinforced the **Rights of Persons with Disabilities Act, 2016**.
- Mandatory **Universal Design** in all digital infrastructure (e-gov, UPI).

2. SCIENTIFIC TESTS & CONSENT (Amlesh Kumar vs State of Bihar, 2025)



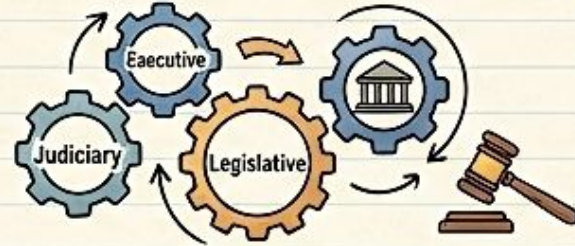
- Reaffirmed Article 20(3): **Right against Self-Incrimination**.
- Confirmed narco-analysis, polygraph, brain mapping **enit require explicit consent** of the accused.
- Sanctity of mental privacy part of personal liberty.



THEME: JUDICIAL REFORMS & ADMINISTRATION

Separation of Powers & Tribunal Independence

3. TRIBUNAL REFORMS (Madras Bar Association vs Uol, 2025)



- Struck down provisions of **Tribunal Reforms Act, 2021** (e.g., short 4-year tenures, Executive control).
- Termed a **"legislative override"** of binding judgements.
- Mandated establishment of an independent **NATIONAL TRIBUNALS COMMISSION (NTC)**.
- NTC to oversee appointments, administration, and infrastructure.



GENDER SENSITIVITY IN JUDICIARY (In Re: Sensitivity, 2026)



- Emphasized **gender sensitivity** in judicial speech and conduct.
- Focused on avoiding stereotypes and ensuring a **respectful courtroom** environment.
- Principles rooted in **Articles 14, 15, and 21**.



RECENT SUPREME COURT JUDGMENTS & LEGAL DEVELOPMENTS: A COMPREHENSIVE STUDY GUIDE



1. EX-POST ENVIRONMENTAL CLEARANCES



- **SUPREME COURT VERDICT (2025):** Allowed retrospective environmental clearances for 'permissible activities' by 2:1 majority.
- **RECALLING PREVIOUS BAR:** Overrules earlier absolute prohibition on ex-post clearances.
- **KEY CONDITIONS:** Activities must be legally 'permissible'; **SUBJECT TO STRICT FINES** based on 'Polluter Pays Principle'.
- **JUDICIAL APPROACH:** Balances environmental protection with proportionality, avoiding immediate project closure for economic stability.



IMPORTANT PRINCIPLES

'POLLUTER PAYS', PUBLIC TRUST DOCTRINE, RIGHT TO LIVELIHOOD (Art 21)

2. JUDICIAL APPROACH TO SEXUAL OFFENCES



EXPERT COMMITTEE CONSTITUTED (Early 2026): To develop guidelines for greater sensitivity.

- **OBJECTIVE:** Remove gender stereotypes from judicial writing & courtroom conduct.
- **ADDRESSING:** 'Secondary victimization' of survivors.
- **LEGAL ANCHORS:** Article 21 (Fair Trial & Dignity), Bangalore Principles (Judicial Integrity).



3. TRANSGENDER RIGHTS (2025 Rulings)



- **GENDER-AFFIRMING PROCEDURES:** Ruled transgender individuals DO NOT REQUIRE EMPLOYER PERMISSION.
- **KEY RATIONALE:** Bodily autonomy, right to health (Article 21) are paramount over employment contracts.
- **STRICTER COMPLIANCE** with Transgender Persons (Protection of Rights) Act, 2019: Mandates Nodal Officers, Non-Discrimination in benefits/promotions (Art 14, 15), right to self-identification.



'UPSC PRELIMS 2026: KEY GOVERNANCE REFORMS'

Quick Revision Guide: Labour & GST

1 LABOUR REFORMS: FOUR LABOUR CODES

1. UNIFYING 29 CENTRAL LAWS

	CODE	FOCUS	CRITICAL FACT for PRELIMS
	Code on Wages (2019)	Minimum Wages, Bonus	Extends "Floor Wage" to both FORMAL and INFORMAL sectors.
	Industrial Relations (2020)	Disputes, Trade Unions	Threshold for prior govt. permission for retrenchment raised from 100 to 300 WORKERS.
	Social Security (2020)	Insurance, Maternity	First-time legal recognition and social security for GIG & PLATFORM WORKERS.
	OSH & Working Conditions (2020)	Safety, Health	Women allowed to work in all establishments, including NIGHT SHIFTS (with consent/safety).

OPERATIONAL STATUS (2026)

- **Effective Date:** Nov 21, 2025
- **Implementation:** Labour is in CONCURRENT LIST (Schedule VII); States must notify rules.
- **Fixed-Term Employment (FTE):** Same benefits, GRATUITY after 1 year (not 5).

2 GST 2.0: NEXT-GENERATION GST

2. SIMPLER STRUCTURE & RATE RATIONALIZATION

SIMPLIFIED SLABS GOAL (2026)

PREVIOUS	VS	NEW (2026)	
...		5%	12% slab largely ABOLISHED; items moved to 5% or 18%.
5%		18%	
...		40% (Sin/Luxury)	28% + Cess becomes unified 40% slab.
...			

CONSTITUTIONAL & FISCAL NUANCES

- **Article 279A:** GST COUNCIL decisions.  Central Govt (1/3rd)
State Govts (2/3rds)
- **Compensation Cess:** Officially ELIMINATED (Feb 2026); replaced by duties/new cess.
- **Inverted Duty Structure:** Reform CORRECTS tax on inputs > tax on finished goods.

QUICK REVISION CHECKLIST

1. Is "Labour" in Concurrent List? ☒ (YES)
2. Does GST Council have constitutional status? ☒ (YES, Art 279A)
3. New worker limit for factory closures without govt permission? ☒ (300)
4. Are gig workers covered under Social Security Code? ☒ (YES)



UPSC CSE PRELIMS 2026: CURRENT AFFAIRS NOTEBOOK



1. UNIFIED PENSION SCHEME (UPS)

Introduced for Central Govt. Employees (Alternative to NPS)

- Effective Date: April 1, 2025 (FY 2025-26)

- Main Pillars:



Assured Pension: 50% of last 12 months average basic pay (min. 25 yrs service)



Assured Family Pension: 60% of employee's pension on demise



Assured Minimum Pension: ₹10,000/month (min. 10 yrs service)

- **Inflation Indexation:** Adjusted with Dearness Relief (DR)
- **Contributions:** Employee: 10%, Govt: 18.5% (increased from 14%)
- **Tax Exemptions:** Corresponding exemptions provided



2. REVISED MSME DEFINITION (Budget 2025-26)

- Expanded limits for Credit Flow & to prevent dwarfism



New Composite Criteria (Investment AND Turnover)

Category	Investment Limit (up to)	Turnover Limit (up to)
MICRO	₹2 Crore	₹10 Crore
SMALL	₹20 Crore	₹100 Crore
MEDIUM	₹100 Crore	₹500 Crore

- **Significance:** Retain PSL benefits, access to CGTMSE
- **Integration:** Uses Udyam Portal for formalization



3. ANGIKAAR 2025 CAMPAIGN

Nationwide: Addressing Urban Poverty & Employment



- Ministry: Ministry of Housing and Urban Affairs (MoHUA)

- Objective: Social integration, climate awareness, and employment for urban poor



- Core Components:



Livelihood: Strengthen PM SVANidhi & DAY-NULM



Sustainability: Waste & water management for PMAY-U



Health: Convergence with Ayushman Bharat in slums

- Strategy: Uses Community Resource Persons (CRPs) & Self-Help Groups (SHGs)



ABHISHA AI
by Abhishek Pathak



UPSC CSE PRELIMS 2026: KEY CONSTITUTIONAL FOCUS AREAS & TRENDS



ARTICLE 21 & 21A: EVOLVING SCOPE

 **RIGHT TO DIGITAL ACCESS:**
A POSITIVE OBLIGATION
(STATE MUST FACILITATE)



 **STRICT ENFORCEMENT:**
INFORMAL-SECTOR CHILD
LABOUR BAN



Linkages: Art 14, 15 & Art 21A
(Education)

FEDERALISM (ART 245-255): KEY FRICTIONS

**DISPUTES OVER VC
APPOINTMENTS**



→ **GOVERNOR AS EX-OFFICIO
CHANCELLOR:**
By State Laws, not Constitution.

→ **NOT BOUND BY AID & ADVICE:**
In this specific role, unless
statute mandates.

→ **STATE POWER:** Can amend
laws to remove Governor as
Chancellor.

★ **REPUGNANCY (ART 254):**
Watch for conflicts between
State and Central/UGC
regulations.



ELECTORAL REFORMS & TRANSPARENCY

👉 **VOTER'S RIGHT TO KNOW**
(ART 19(1)(a)):

Supreme Court ruling:
Funding transparency is key
to an informed choice.



★ **ECI INDEPENDENCE:**

Focus on Election Commissioners Act.

• **SELECTION COMMITTEE
COMPOSITION.**

• **REMOVAL PROCEDURE**
(Equivalence under Art 324).



★ **ELECTORAL TRUSTS:**

Transparent alternative.
Must disburse 95% funds
in a financial year to
registered parties.



SIXTH SCHEDULE: TRIBAL ADMINISTRATION

★ **COMPARATIVE ANALYSIS:** 
FIFTH VS. SIXTH SCHEDULE

Feature	5th Schedule	6th Schedule
Applicability	Any state except AMTM	Specifically AMTM
Governance Body	Tribes Advisory Council (TAC) - Advisory Aeltizry	Autonomous District Councils (ADC) - Legislative & Judicial
Power	Governor can direct laws that don't apply	ADCs can make laws on land, etc.

LADAKH DEMAND:

Protection of ecology
& tribal identity
(97% ST population).



HURDLE: Creative interpretation
of Art 244(2) required.

